

25SMCV02505 25SMCV02505

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-09-01

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CM%2C09%2F01%2F2026

Source SHA-256: 21e471e002af8ceb05012def44a9c33d0064c525e8390012182e894028ed6c71

Case Number: 25SMCV02505 Hearing Date: September 1, 2026 Dept: M

CASE NAME: Jimenez v. Donel, et al.

CASE NO.: 25SMCV02505

MOTION: Motion

to Compel Initial Discovery Responses

HEARING DATE: 9/1/2026

Legal

Standard

Where there has been no timely response to a CCP section 2031.010 inspection demand, the demanding party must seek an order compelling a response. (CCP § 2031.300.) Failure to timely respond waives all objections, including privilege and work product. Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. Where the motion seeks only a response to the inspection demand, no showing of "good cause" is required.

If a

party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (CCP § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown

in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal. App. 3d 902, 905-906.)

Pursuant

to CCP section 2033.280(b), a party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2033.010). "Failure to timely respond to RFA does not result in automatic admissions. Rather, the propounder of the RFA must 'move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction' under § 2033.010 et seq." (CCP, § 2033.280(b).) The court "shall" grant the motion to deem RFA admitted, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (CCP, § 2033.280(c).)

ANALYSIS

Defendant

Donel Investments LLC moves to compel Plaintiff Javier Jimenez's verified responses, without objection to the following discovery: a) Second Set of Special Interrogatories; b) Second Set of Form Interrogatories; c) Requests for Admission, Set One; and d) Production of Documents, Set Two (collectively, the "Subject Discovery"). Defendant also requests monetary sanctions against Javier and his counsel of record, Now Law Firm, APLC, in connection with the above motions, in the following amounts: a) \$3,310.00; b) \$3,310.00; c) \$3,960.00; and d) 3,310.00.

On June 1, 2026, Donel served the Subject Discovery upon Jimenez's counsel via electronic service. (Donel Decls., ¶ 2.) Jimenez did not serve any response or request an extension. (Id., ¶¶ 3-4.) Jimenez has not opposed the instant motions.

Accordingly, the motions are GRANTED. Jimenez must serve initial responses, without objection, within 15 days. Requests for Admission, Set One, are deemed admitted.

As to sanctions, the Court finds the noticed sanctions to

be unreasonable and excessive in light of the simple and duplicative nature of the motions. Additionally, the lack of opposition removed the need for a reply. Therefore, mandatory monetary sanctions are granted in the reduced total amount of \$2,840.00, inclusive of costs. Sanctions are imposed in favor of Donel's counsel of record, jointly and severally against Jimenez and his counsel of record. Sanctions are to be paid in 30 days.